Environmental Laws, Decoded: Narration Script

Nyaya Patashala · LL.B (3YDC) Semester I · Paper V · All 5 units

54 slides · about 5,184 words · roughly 38 minutes at 135 words per minute. Grey italic brackets are pronunciation hints; bold words are stressed; "..." is a deliberate pause.

SLIDE 1 · ENVIRONMENTAL LAWS — DECODED

Welcome to Nyaya Patashala *[NYAA-ya Paa-TA-shaa-la]*. Every river you drink from, every breath you take in a city — somewhere behind it, there is a law. This is Paper Five of your first semester: Environmental Laws. In one sitting, we will decode all five units — what the environment means, how the world built a rulebook to protect it, how our Constitution and our courts turned that rulebook into rights, the three pollution Acts every law student must know, and finally the laws on forests, wildlife and biodiversity. Keep a notebook open. Let us begin.

SLIDE 2 · THE PAPER AT A GLANCE

First, the paper itself. It is a theory paper of one hundred marks, eighty external and twenty internal, taught six hours a week. Five units. Write this down — every good answer in environmental law stands on three legs: the provision, the leading case, and the principle the court laid down. For every topic today, I will give you all three.

SLIDE 3 · YOUR FIVE-UNIT ROADMAP

Here is the map. Unit One gives you the vocabulary — environment, ecology, pollution, ozone and climate. Unit Two is the global rulebook, from Ramsar *[Raam-SAAR]* in nineteen seventy-one to Johannesburg in two thousand two. Unit Three is the heart of the paper: the Constitution, the courts, and the law of torts. Unit Four is the statute book: the Water Act, the Air Act and the Environment Protection Act. And Unit Five protects living nature: forests, wildlife and biodiversity, with an appraisal of the NGT. Let us open Unit One.

Unit: Environment: meaning, tradition and threats

SLIDE 4 · ENVIRONMENT: MEANING, TRADITION AND THREATS

Unit One. Before we study any law, we must know what that law protects. So — what exactly is the environment? Here is your official syllabus for this unit, word for word. Note down every topic — every exam question comes from this list.

SLIDE 5 · UNIT I: IMPORTANT QUESTIONS

Here are the important questions from Unit I. Five long answer questions: 1. Define environment. Explain its meaning, concept and components. 2. Discuss environmental protection in ancient Indian tradition and culture and during the medieval period. 3. Explain biosphere, ecosystem and ecology, and the types of environment. 4. What is pollution? Discuss its sources, types and effects. 5. Discuss ozone depletion, global warming and climate change. And five short answer questions: 1. Define "environment" under the EPA, 1986. 2. What is an ecosystem? 3. Distinguish between biotic and abiotic components. 4. What is ozone depletion? 5. What is global warming? Note them down. Everything you need to answer them is in the slides that follow.

SLIDE 6 · WHAT IS "ENVIRONMENT"?

The statutory definition comes from Section two-A of the Environment Protection Act, nineteen eighty-six. Read it slowly. Environment includes water, air and land — and the inter-relationship among them, and with human beings, other living creatures, plants, micro-organisms and property. Notice two things. The word is **includes**, so the definition is open-ended. And it protects relationships, not just objects. On the right, the four spheres: lithosphere, hydrosphere, atmosphere and biosphere. When any one is disturbed, the others feel it.

SLIDE 7 · PROTECTION IN INDIAN TRADITION: ANCIENT TO MEDIEVAL

Environmental protection in India did not begin in nineteen seventy-two. The Atharva Veda's Prithvi Sukta *[Pri-THVEE SOOK-ta]* says — Earth is my mother, and I am her son. Kautilya's Arthashastra *[Ar-tha-SHAAS-tra]* provided for a superintendent of forests, and prescribed fines for cutting trees. Ashoka's Pillar Edict Five lists protected creatures and forbids burning forests needlessly. In the medieval period, gardens, canals and hunting reserves were managed, and village commons were governed by custom. And in seventeen thirty, at Khejarli *[Khay-JAR-lee]*, Amrita Devi and three hundred and sixty-three Bishnois *[BISH-noy]* gave their lives to save khejri trees. In an answer, use this to show that Article fifty-one-A-g codified an old Indian ethic.

SLIDE 8 · COMPONENTS, BIOSPHERE, ECOSYSTEM AND ECOLOGY

The environment has two components. Abiotic — the non-living: air, water, soil, sunlight. And biotic — the living: producers, consumers and decomposers. Three definitions you must not mix up. The biosphere is the zone of the Earth where life exists. An ecosystem is a community of organisms interacting with its non-living surroundings — the term comes from A. G. Tansley *[TANZ-lee]*, nineteen thirty-five. Ecology is the science of these interactions — a word coined by Ernst Haeckel *[HECK-el]* in eighteen sixty-six. And types of environment: natural, man-made, and social.

SLIDE 9 · POLLUTION: CONCEPT, SOURCES, TYPES, EFFECTS

Now, pollution. In law, start with the Environment Protection Act. Section two-B defines an environmental pollutant — any solid, liquid or gaseous substance in a concentration that is, or tends to be, injurious. Section two-C says pollution is simply the presence of such a pollutant. Sources can be natural or man-made, and point or non-point. Types: air, water, soil, noise, thermal and radioactive. And effects run across three dimensions — health, ecology and the economy. In a long answer, use all three.

SLIDE 10 · OZONE DEPLETION, GLOBAL WARMING AND CLIMATE CHANGE

Two global threats close Unit One. On the left, ozone depletion: chlorofluorocarbons rise to the stratosphere, release chlorine, and break down ozone, so more ultraviolet-B reaches us. The legal response: the Vienna Convention of nineteen eighty-five, the Montreal Protocol of nineteen eighty-seven, and the Kigali Amendment of twenty sixteen, which targets HFCs. On the right, greenhouse gases trap heat, temperatures rise, and the climate changes. The response: the IPCC, the UNFCCC, Kyoto and Paris. Now — a common mistake. The ozone hole does not cause global warming. They are different problems, linked only because some of the same gases do both.

Unit: The global rulebook

SLIDE 11 · THE GLOBAL RULEBOOK

Unit Two. Pollution does not stop at borders, so the law could not stop there either. Here is your official syllabus for this unit, word for word. Note down every topic — every exam question comes from this list.

SLIDE 12 · UNIT II: IMPORTANT QUESTIONS

Here are the important questions from Unit II. Five long answer questions: 1. Trace the history and development of environmental protection under international law. 2. Explain the fundamental principles of international environmental law. 3. Discuss the aims, objectives and impact of the Stockholm Conference, 1972. 4. Explain the Rio Declaration, 1992 and the Convention on Biological Diversity, 1992. 5. Discuss the Kyoto Protocol, 1997 and the outcomes of the Johannesburg Conference, 2002. And five short answer questions: 1. Ramsar Convention, 1971 2. UNEP 3. Brundtland Report, 1987 4. Earth Summit Plus Five 5. Millennium Development Goals Note them down. Everything you need to answer them is in the slides that follow.

SLIDE 13 · THIRTY YEARS THAT BUILT INTERNATIONAL ENVIRONMENTAL LAW

Here is the whole unit on one line. Nineteen seventy-one — Ramsar, for wetlands. Nineteen seventy-two — Stockholm, the first UN environment conference, which created UNEP. Nineteen eighty-seven — the Brundtland Report gave us sustainable development. Nineteen ninety-two — the Rio Earth Summit. Nineteen ninety-seven — Kyoto, and the Earth Summit plus five review. Two thousand — the Millennium Development Goals. Two thousand two — Johannesburg. **Write this down**: seventy-one, seventy-two, eighty-seven, ninety-two, ninety-seven, two thousand, two thousand two.

SLIDE 14 · FUNDAMENTAL PRINCIPLES OF INTERNATIONAL ENVIRONMENTAL LAW

Eight principles run through every treaty in this unit. One — the no-harm rule: a state must not damage the environment beyond its borders. It goes back to the Trail Smelter arbitration and Stockholm Principle twenty-one. Two — prevention. Three — precaution, Rio Principle fifteen. Four — polluter pays, Rio Principle sixteen. Five — sustainable development. Six — common but differentiated responsibilities, Rio Principle seven. Seven — intergenerational equity. Eight — public participation and environmental impact assessment. Learn these eight, because Unit Three will show you Indian courts adopting the same principles.

SLIDE 15 · RAMSAR CONVENTION, 1971

The Ramsar Convention is the oldest treaty in this unit. Its full name: the Convention on Wetlands of International Importance, especially as Waterfowl Habitat. It was signed on the second of February, nineteen seventy-one, at Ramsar in Iran — which is why the second of February is World Wetlands Day. Its three pillars: wise use, designation of sites, and international cooperation. India joined in nineteen eighty-two. Chilika and Keoladeo were India's first sites. The Montreux *[Mon-TRUH]* Record lists sites under threat. **Telugu States Lens.** Kolleru *[Ko-LAY-roo]* Lake in Andhra Pradesh, between the Godavari *[Go-daa-va-ree]* and Krishna deltas, became a Ramsar site in two thousand two.

SLIDE 16 · STOCKHOLM CONFERENCE, 1972

Stockholm, June nineteen seventy-two: the UN Conference on the Human Environment, the first time the world treated the environment as a major international issue. Its aim was a common outlook to preserve and improve the human environment. Its outcomes: a Declaration of twenty-six principles, an Action Plan of one hundred and nine recommendations, the birth of UNEP, and the fifth of June as World Environment Day. Its impact on India is direct. The forty-second Amendment followed in nineteen seventy-six. And the preambles of the Air Act and the Environment Protection Act expressly refer to the Stockholm decisions — which is why Parliament could use Article two hundred and fifty-three.

SLIDE 17 · UNEP AND THE BRUNDTLAND REPORT, 1987

Stockholm created UNEP — the United Nations Environment Programme — headquartered in Nairobi, Kenya. It assesses the global environment and catalyses new treaties. Then, in nineteen eighty-three, the UN set up the World Commission on Environment and Development, chaired by Gro Harlem Brundtland *[Groh HAR-lem BROONT-land]* of Norway. Its nineteen eighty-seven report, Our Common Future, gave the definition every examiner expects. **Write this down.** Sustainable development is development that meets the needs of the present... without compromising the ability of future generations to meet their own needs.

SLIDE 18 · RIO EARTH SUMMIT AND RIO DECLARATION, 1992

Twenty years after Stockholm came Rio de Janeiro, June nineteen ninety-two — the Earth Summit. It produced five outcomes: the Rio Declaration with twenty-seven principles, Agenda twenty-one, the climate convention UNFCCC, the Convention on Biological Diversity, and the non-binding Forest Principles. From the Declaration, memorise four principles. Seven — common but differentiated responsibilities. Ten — public participation and access to justice. Fifteen — the precautionary approach. Sixteen — polluter pays. Our Supreme Court has borrowed from fifteen and sixteen again and again.

SLIDE 19 · CONVENTION ON BIOLOGICAL DIVERSITY, 1992

The Convention on Biological Diversity has exactly three objectives. One — conservation of biological diversity. Two — sustainable use of its components. Three — fair and equitable sharing of the benefits arising from genetic resources. It opened for signature at Rio, and entered into force on the twenty-ninth of December, nineteen ninety-three. Its two protocols: Cartagena on biosafety, and Nagoya on access and benefit-sharing. India implemented it through the Biological Diversity Act, two thousand two, which set up the National Biodiversity Authority, State Biodiversity Boards and local Biodiversity Management Committees.

SLIDE 20 · EARTH SUMMIT+5 AND THE KYOTO PROTOCOL, 1997

Nineteen ninety-seven had two events. In June, the UN General Assembly met in a special session in New York — the Earth Summit plus five — to review Agenda twenty-one. Its verdict: progress was insufficient. In December came the Kyoto *[Kee-YO-to]* Protocol. It set binding targets for developed, Annex One countries — an average cut of five point two per cent below nineteen ninety levels in the first commitment period, two thousand eight to two thousand twelve. It covered six greenhouse gases and created three market mechanisms: emissions trading, the Clean Development Mechanism and Joint Implementation. It entered into force only in February two thousand five. India, as a developing country, had no binding target but hosted many CDM projects.

SLIDE 21 · MILLENNIUM DEVELOPMENT GOALS AND JOHANNESBURG, 2002

In September two thousand, the UN Millennium Summit adopted eight Millennium Development Goals, with a deadline of two thousand fifteen. Goal seven was to ensure environmental sustainability. In two thousand fifteen they were replaced by the seventeen Sustainable Development Goals. Then Johannesburg, two thousand two — the World Summit on Sustainable Development, or Rio plus ten. Its Declaration described three mutually reinforcing pillars of sustainable development: economic, social and environmental. It adopted a Plan of Implementation, and launched Type Two partnerships between governments, business and civil society. That completes Unit Two.

Unit: The Constitution, the courts and the law of torts

SLIDE 22 · THE CONSTITUTION, THE COURTS AND THE LAW OF TORTS

Unit Three is where most of your marks are. Our Constitution of nineteen fifty did not even mention the environment. So how did a clean environment become a fundamental right? Here is your official syllabus for this unit, word for word. Note down every topic — every exam question comes from this list.

SLIDE 23 · UNIT III: IMPORTANT QUESTIONS

Here are the important questions from Unit III. Five long answer questions: 1. Explain the protection of environment under the Indian Constitution with reference to the 42nd Amendment, 1976. 2. Discuss the judicial role, expansion of locus standi and PIL in environmental protection. 3. Explain the dynamic interpretation of Articles 21, 14 and 19 for a clean and pollution-free environment. 4. Distinguish between absolute and strict liability with decided cases. 5. Discuss environmental protection under the law of torts and under the BNS and BNSS, 2023. And five short answer questions: 1. Sustainable development 2. Precautionary principle 3. Polluter pays principle 4. Doctrine of public trust 5. Public and private nuisance Note them down. Everything you need to answer them is in the slides that follow.

SLIDE 24 · 42ND CONSTITUTION AMENDMENT ACT, 1976

The forty-second Amendment of nineteen seventy-six did three things for the environment. First, it inserted Article forty-eight-A, a Directive Principle: the State shall endeavour to protect and improve the environment and safeguard forests and wild life. Second, Article fifty-one-A-g, a Fundamental Duty: every citizen shall protect and improve the natural environment and have compassion for living creatures. Third, it moved forests and the protection of wild animals and birds from the State List to the Concurrent List, as entries seventeen-A and seventeen-B. Add Articles forty-seven, two hundred and fifty-three, and the Eleventh and Twelfth Schedules to complete the constitutional picture. Remember — a Directive Principle is not enforceable in court on its own. The courts solved that problem through Article twenty-one.

SLIDE 25 · JUDICIAL ROLE: EXPANSION OF LOCUS STANDI AND PIL

Traditionally, only the injured person could go to court. But rivers and forests cannot file petitions. So in S. P. Gupta versus Union of India, nineteen eighty-one, the Supreme Court liberalised locus standi *[LOH-kus STAN-dee]*. Any public-spirited person could now approach the court, and even letters were treated as petitions. This is Public Interest Litigation. Three environmental PILs to remember. RLEK versus State of U.P., nineteen eighty-five — limestone quarrying in the Doon Valley. M. C. Mehta versus Union of India, nineteen eighty-seven — the Kanpur tanneries polluting the Ganga. And T. N. Godavarman *[Go-DAA-var-man]* Thirumulpad, from nineteen ninety-six, where the court gave 'forest' its dictionary meaning and kept the case open as a continuing mandamus.

SLIDE 26 · DYNAMIC INTERPRETATION OF ARTICLES 21, 14 AND 19

Here is how the courts made the environment justiciable. **Article twenty-one.** In Subhash Kumar versus State of Bihar, nineteen ninety-one, the court held that the right to life includes the right to pollution-free water and air. **Article fourteen.** Arbitrary action against the environment violates equality — in Bangalore Medical Trust versus Muddappa *[Mud-DAP-pa]*, converting a public park site into a private nursing home was struck down. **Article nineteen.** The freedom of trade does not include a freedom to pollute — so closing polluting tanneries was a reasonable restriction. Directive Principles plus Fundamental Duties, read into Fundamental Rights: that is the dynamic interpretation your syllabus asks about.

SLIDE 27 · RIGHT TO A CLEAN ENVIRONMENT AND SUSTAINABLE DEVELOPMENT

If you remember only one case from this unit, make it Vellore Citizens' Welfare Forum versus Union of India, nineteen ninety-six. Tanneries in Tamil Nadu were polluting the Palar *[PAA-lar]* river. The court called sustainable development a balancing concept between ecology and development, and declared that the precautionary principle and the polluter pays principle are part of the environmental law of India. In N. D. Jayal versus Union of India, the Tehri Dam case of two thousand three, the court said the right to sustainable development is itself part of Article twenty-one. And Section twenty of the NGT Act now makes these principles binding on the Tribunal.

SLIDE 28 · PRECAUTIONARY AND POLLUTER PAYS PRINCIPLES

The precautionary principle says: anticipate and prevent. If there is a threat of serious damage, lack of scientific certainty is no excuse for delay. And the burden of proof shifts to the industry. The polluter pays principle says: whoever pollutes pays — both to compensate victims and to restore the environment. Its leading case is Indian Council for Enviro-Legal Action versus Union of India, nineteen ninety-six, from Bichhri *[BICH-ree]* village in Rajasthan, where H-acid sludge poisoned the wells. **Telugu States Lens.** A. P. Pollution Control Board versus Professor M. V. Nayudu *[NAA-yu-du]*, nineteen ninety-nine. An industry was proposed in the catchment of Osman Sagar and Himayat Sagar, the lakes that supply Hyderabad. The Supreme Court placed the burden of proof on the industry. A perfect Group-1 example.

SLIDE 29 · STRICT LIABILITY VS ABSOLUTE LIABILITY

This comparison is a guaranteed long-answer topic. Strict liability comes from Rylands versus Fletcher, eighteen sixty-eight: a person who brings a dangerous thing onto land is liable if it escapes. But it allows five exceptions — Act of God, the plaintiff's own fault, consent, the act of a stranger, and statutory authority. In December nineteen eighty-five, oleum *[OH-lee-um]* gas leaked from Shriram's plant in Delhi. In M. C. Mehta versus Union of India, nineteen eighty-seven, the Supreme Court said strict liability was not enough for India. It created absolute liability: an enterprise in a hazardous activity is liable with no exceptions, and compensation must match its size and capacity so that it deters. After Bhopal, Parliament added the Public Liability Insurance Act, and later Section seventeen of the NGT Act.

SLIDE 30 · DOCTRINE OF PUBLIC TRUST

The public trust doctrine has three parties. The public is the beneficiary. The State is the trustee — not the owner. And natural resources — seashores, running water, air, forests — are the trust property. It comes from Roman law, and was revived by Professor Joseph Sax in nineteen seventy. In India, the case is M. C. Mehta versus Kamal Nath, nineteen ninety-seven. A motel near Manali was allowed to divert the Beas *[Bee-AAS]* river. The Supreme Court quashed the lease: a trustee cannot hand public resources to a private company for commercial use.

SLIDE 31 · ENVIRONMENTAL PROTECTION AND THE LAW OF TORTS

Long before environmental statutes, the law of torts protected the environment. Four torts matter. Public nuisance injures the public at large. Private nuisance is an unreasonable interference with your enjoyment of your land — noise, smell, dust. Negligence needs a duty, a breach and damage. Trespass is a direct physical intrusion, like dumping waste on someone's land. The remedies: damages, injunction and abatement. And the classic case — Municipal Council, Ratlam *[RUT-lum]* versus Vardhichand *[Var-dhee-CHUND]*, nineteen eighty. The court ordered the municipality to clean up open drains, and said lack of funds is no defence.

SLIDE 32 · CRIMINAL LAW: BNS AND BNSS, 2023 (IN FORCE 1 JULY 2024)

Your syllabus now uses the new criminal laws, in force from the first of July, twenty twenty-four. Here is the conversion table. Public nuisance — old Section two sixty-eight, now Section two seventy of the Bharatiya Nyaya Sanhita *[BHAA-ra-tee-ya NYAA-ya SUN-hi-taa]*. Fouling water of a public spring — two seventy-seven becomes two seventy-nine. Making the atmosphere noxious — two seventy-eight becomes two eighty. And the most-used power: the magistrate's order to remove a public nuisance, old Section one thirty-three CrPC, is now Section one fifty-two of the Bharatiya Nagarik Suraksha Sanhita *[Naa-ga-rik Su-RUK-sha SUN-hi-taa]*. In the exam, write both numbers.

Unit: The statute book: Water, Air and Environment

SLIDE 33 · THE STATUTE BOOK: WATER, AIR AND ENVIRONMENT

Unit Four. Three Acts, one pattern: a regulator, a consent system, directions, penalties, and courts that keep watch. Learn the pattern once and all three become easy. Here is your official syllabus for this unit, word for word. Note down every topic — every exam question comes from this list.

SLIDE 34 · UNIT IV: IMPORTANT QUESTIONS

Here are the important questions from Unit IV. Five long answer questions: 1. Explain the framework and regulatory mechanism of the Water Act, 1974. 2. Discuss offences and penalties under the Water Act and the role of the judiciary in preventing water pollution. 3. Explain the framework and regulatory mechanism of the Air Act, 1981. 4. Discuss offences and penalties under the Air Act and the role of the judiciary in preventing air pollution. 5. Discuss the main aims and objectives of the Environment (Protection) Act, 1986 and the penalties under it. And five short answer questions: 1. Importance of Section 3 of EPA 2. Importance of Section 5 of EPA 3. Central and State Pollution Control Boards 4. Consent to establish and operate 5. National Environment Tribunal Note them down. Everything you need to answer them is in the slides that follow.

SLIDE 35 · THREE ACTS, THREE CONSTITUTIONAL ROUTES

Three Acts, three dates: nineteen seventy-four, nineteen eighty-one, nineteen eighty-six. But notice the constitutional route. Water was a State subject, so the Water Act was passed under Article two fifty-two, after state legislatures passed resolutions asking Parliament to legislate. The Air Act and the Environment Protection Act were passed under Article two fifty-three, to implement the Stockholm decisions. This is a favourite trap. Water — two fifty-two. Air and EPA — two fifty-three.

SLIDE 36 · WATER ACT, 1974: FRAMEWORK, POWERS, PENALTIES

The Water Act's framework is a chain. At the top, the Central Pollution Control Board under Section three. Below it, State Boards under Section four. And at the bottom, the industry that needs consent. Key powers: Sections twenty-one and twenty-three to take samples and inspect. Section twenty-four bars discharging polluting matter into streams or wells. Sections twenty-five and twenty-six require prior consent. Section thirty-three-A, added in nineteen eighty-eight, lets the Board order closure or cut off power and water. Offences sit in Chapter Seven. Under Section forty-nine, even a citizen can complain, after giving sixty days' notice. And note the twenty twenty-four amendment, which replaced jail with monetary penalties for many minor offences.

SLIDE 37 · AIR ACT, 1981: FRAMEWORK, POWERS, PENALTIES

The Air Act follows the same pattern, with the same Boards. Under Section two-A, air pollutant includes noise — added in nineteen eighty-seven. Section nineteen lets the State declare air pollution control areas. Section twenty-one requires consent to run an industrial plant there. Section twenty-two bars emissions above the standards. Section thirty-one-A gives the Board power to order closure or cut off power and water. Penalties follow from Section thirty-seven, and Section forty-three allows citizen complaints after sixty days' notice. The judiciary made this Act matter — in the Taj Trapezium *[tra-PEE-zee-um]* case, and in the Delhi vehicular pollution case that brought CNG buses to Delhi.

SLIDE 38 · WATER ACT VS AIR ACT: A QUICK COMPARISON

Let me put both Acts side by side, so you can write a comparison answer in five minutes. Basis: two fifty-two versus two fifty-three. Regulator: the same Boards. Area: the whole state for water, notified control areas for air. Consent: twenty-five and twenty-six, versus twenty-one. Directions: thirty-three-A versus thirty-one-A. Citizen complaint: forty-nine versus forty-three, both after sixty days' notice. Pause the video and copy this table.

SLIDE 39 · ENVIRONMENT (PROTECTION) ACT, 1986: AIMS AND OBJECTIVES

On the night of the second and third of December, nineteen eighty-four, methyl isocyanate *[MEE-thile eye-so-SY-a-nate]* gas leaked from the Union Carbide plant in Bhopal. The Water and Air Acts were not built for a disaster like that. So in nineteen eighty-six Parliament passed an umbrella law — the Environment Protection Act. Its aims: protect and improve the environment, implement the Stockholm decisions, and fill the gaps in earlier laws. Many rules you hear about — the EIA Notification, the CRZ Notifications, the waste rules and the Noise Rules — are all made under this Act. Penalties are in Section fifteen, amended by the Jan Vishwas Act of twenty twenty-three, and Section nineteen allows citizen complaints.

SLIDE 40 · WHY SECTIONS 3 AND 5 ARE THE HEART OF EPA

Your syllabus singles out two sections, so your examiner will too. **Section three** gives the Central Government power to take all measures it thinks necessary — set emission standards, restrict where industries may operate, and lay down safeguards for accidents. Under Section three-three it can even create new authorities, like the Central Ground Water Authority. **Section five** is the enforcement weapon. The Centre can direct any person, officer or authority — including closure of an industry, or stopping its electricity and water. Section three is the power to plan. Section five is the power to act. Together they make the EPA an umbrella law.

SLIDE 41 · FROM THE NATIONAL ENVIRONMENT TRIBUNAL TO THE NGT

Your syllabus says National Environment Tribunal — so here is the story. After the oleum gas case, the Supreme Court suggested specialised environment courts. Parliament passed the National Environment Tribunal Act in nineteen ninety-five, for no-fault liability in hazardous-substance accidents. But the tribunal was never effectively set up. In nineteen ninety-seven came the National Environment Appellate Authority. Then the National Green Tribunal Act, twenty ten, repealed both under Section thirty-eight. The NGT was set up on the eighteenth of October, twenty ten. Remember Sections fourteen to seventeen, nineteen, twenty and twenty-two. **Prelims Trap** — and a law-exam trap too: the NGT's First Schedule lists seven Acts, and the Wild Life Protection Act is not one of them.

Unit: Forests, wildlife and biodiversity

SLIDE 42 · FORESTS, WILDLIFE AND BIODIVERSITY

Unit Five. So far we protected air and water. Now we protect life itself — forests, wild animals and biodiversity. Here is your official syllabus for this unit, word for word. Note down every topic — every exam question comes from this list.

SLIDE 43 · UNIT V: IMPORTANT QUESTIONS

Here are the important questions from Unit V. Five long answer questions: 1. Explain the importance of forests and the salient features of the Indian Forest Act, 1927. 2. Discuss the salient features of the Forest Conservation Act, 1980 and the judicial approach to forest conservation. 3. Explain the salient features of the Wild Life (Protection) Act, 1972 and offences against wild life. 4. Explain the salient features of the Biological Diversity Act, 2002. 5. Critically appraise the National Green Tribunal Act, 2010. And five short answer questions: 1. Sanctuary vs national park 2. Licensing of zoos 3. Reserved forest 4. Biodiversity conservation 5. T.N. Godavarman case Note them down. Everything you need to answer them is in the slides that follow.

SLIDE 44 · IMPORTANCE OF FORESTS AND THE NEED FOR CONSERVATION

Why do forests matter? Four reasons. Ecological — they protect soil and water and shelter most land species. Climate — they store carbon. Economic — timber, bamboo and forest produce. And social — they are home to tribal and forest-dwelling communities. But forests are lost to mining, dams, roads and encroachment. The National Forest Policy of nineteen eighty-eight set a goal of one-third of our land under forest or tree cover. Remember the story in one line: the Indian Forest Act manages forests, the Forest Conservation Act stops their diversion, and the courts widen protection.

SLIDE 45 · INDIAN FOREST ACT, 1927: SALIENT FEATURES

The Indian Forest Act of nineteen twenty-seven is a colonial law, built on the Acts of eighteen sixty-five and eighteen seventy-eight. Its aim was to manage forests and their produce. It creates three classes. Reserved forests, under Chapter Two, get the highest protection — everything is barred unless permitted. Village forests, under Section twenty-eight, are managed by a village community. Protected forests, under Chapter Four, get lower protection — everything is allowed unless prohibited. Also note Section thirty-five on private forests, Section forty-one on transit of forest produce, Section fifty-two on seizure, and Section sixty-eight on compounding offences.

SLIDE 46 · FOREST CONSERVATION ACT, 1980: SALIENT FEATURES

The Indian Forest Act managed forests. But forests kept disappearing. So in nineteen eighty came the Forest Conservation Act — a short Act with one powerful section. **Section two.** No State can, without prior approval of the Central Government, de-reserve a reserved forest, use forest land for a non-forest purpose, lease it to a private party, or clear natural trees to raise a plantation. Section three creates an Advisory Committee, and compensatory afforestation is now governed by the CAF Act of twenty sixteen. In twenty twenty-three the Act was amended and renamed the Van Sanrakshan Evam Samvardhan *[VUN Sun-RUK-shun AY-vum Sum-VAR-dhun]* Adhiniyam. The amendment is under challenge, and the Supreme Court has told authorities to keep using the wide Godavarman meaning of forest meanwhile.

SLIDE 47 · JUDICIAL APPROACH TO FOREST CONSERVATION

Courts have been the strongest guardians of our forests. In T. N. Godavarman Thirumulpad, from nineteen ninety-six, the Supreme Court said forest means forest in its dictionary sense, whoever owns it. In Banwasi Seva Ashram, nineteen eighty-six, the court balanced a power project against the rights of forest-dwelling tribals. **Telugu States Lens.** Samatha versus State of Andhra Pradesh, nineteen ninety-seven. Land in the Scheduled Areas could not be leased to private companies for mining. A must for Group-1. And in the Niyamgiri *[Ni-yam-GI-ree]* case of twenty thirteen, the gram sabhas were given the final say on how mining affected their rights.

SLIDE 48 · WILD LIFE (PROTECTION) ACT, 1972: SALIENT FEATURES

The Wild Life Protection Act of nineteen seventy-two was passed under Article two fifty-two, because wildlife was then a State subject. In nineteen seventy-six it moved to the Concurrent List. Section five-A creates the National Board for Wild Life, chaired by the Prime Minister. Section nine prohibits hunting of scheduled animals. The schedules give graded protection — the twenty twenty-two amendment reduced them from six to four. Section thirty-nine makes wild animals that are hunted or found dead government property, and Chapter Five-A bans trade in scheduled animal articles. On the right, the authorities: the Chief Wild Life Warden, the Central Zoo Authority, the NTCA and the Wildlife Crime Control Bureau.

SLIDE 49 · SANCTUARIES VS NATIONAL PARKS

A favourite exam question: sanctuary versus national park. Both are declared by the State Government — sanctuaries under Section eighteen, national parks under Section thirty-five — and the Centre can declare either under Section thirty-eight. In a sanctuary, some rights of people may continue, and grazing may be allowed. In a national park, all rights must be extinguished, and grazing is prohibited. Boundaries of either can change only on the recommendation of the National Board for Wild Life. Add three newer categories: conservation reserves, community reserves, and tiger reserves.

SLIDE 50 · LICENSING OF ZOOS AND OFFENCES AGAINST WILD LIFE

Your syllabus mentions licensing of zoos. Since nineteen ninety-one, the Central Zoo Authority under Section thirty-eight-A regulates zoos. Under Section thirty-eight-H, no zoo may operate without its recognition. Offences: Section fifty-one lays down penalties, which are harsher for Schedule One animals and for offences inside sanctuaries and national parks. Section fifty gives powers of search and arrest, and under Section fifty-five even a citizen can complain after sixty days' notice. And a case to quote: Centre for Environmental Law, WWF-India versus Union of India, twenty thirteen — the Asiatic lions case, where the court put the species first.

SLIDE 51 · BIODIVERSITY CONSERVATION: BIOLOGICAL DIVERSITY ACT, 2002

India implemented the Convention on Biological Diversity through the Biological Diversity Act, two thousand two. It has a three-tier structure: the National Biodiversity Authority in Chennai, State Biodiversity Boards, and Biodiversity Management Committees at the local level, which keep People's Biodiversity Registers. Key sections: Section three — foreigners need NBA approval. Section six — patents based on Indian biological resources need NBA approval. Section seven — Indian entities inform the State Board. Section twenty-one — benefit sharing. Section thirty-seven — biodiversity heritage sites. Why does it matter? Biopiracy. India fought and won the revocation of the turmeric and neem patents abroad.

SLIDE 52 · NATIONAL GREEN TRIBUNAL ACT, 2010: AN APPRAISAL

Your syllabus says: the NGT Act, an appraisal. Appraisal means strengths and weaknesses. Strengths: a specialised forum with judicial and expert members; Section twenty makes it apply sustainable development, precaution and polluter pays; it is not bound by the Civil Procedure Code and tries to decide within six months; and in Ankita Sinha, twenty twenty-one, the Supreme Court upheld its suo motu power. Concerns: vacancies and few benches; the Wild Life Act and the Forest Rights Act are outside its Schedule; compliance with its orders is uneven; and there is friction with High Courts. End your answer with a way forward: fill vacancies, add circuit benches, widen Schedule One, and monitor compliance.

SLIDE 53 · RAPID REVISION: FOURTEEN YEARS TO REMEMBER

Rapid revision. Say them with me. Nineteen twenty-seven — the Indian Forest Act. Seventy-one — Ramsar. Seventy-two — Stockholm, and the Wild Life Act. Seventy-four — Water Act. Seventy-six — forty-second Amendment. Eighty — Forest Conservation Act. Eighty-one — Air Act. Eighty-six — EPA. Eighty-seven — Brundtland, and the Oleum gas case. Ninety-two — Rio. Ninety-seven — Kyoto, and Kamal Nath. Two thousand two — Johannesburg, and the Biological Diversity Act. Twenty ten — the NGT. And twenty twenty-three — the BNS and BNSS. If you know these fourteen, you have the skeleton of the whole paper.

SLIDE 54 · THE CONSTITUTION CALLS IT A DUTY. THE COURTS MADE IT A RIGHT.

Look at the journey we took today. Our Constitution first called protecting the environment a duty — a Directive Principle and a Fundamental Duty. Then our judges read it into Article twenty-one and made it a right. But a right that no one defends... is only words on paper. Every law in this paper finally depends on citizens who remember Article fifty-one-A-g. As a future lawyer, you will be one of them. Subscribe to Nyaya Patashala, and post your doubts in the comments. I will see you in the next class.